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NYS DEC VIRTUAL PUBLIC HEARING

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IN RE: DRAFT AIR STATE FACILITY PERMIT FOR APPLICANT

- BROOKLYN UNION GAS COMPANY

VOLUME III

BEFORE: MOLLY T. McBRIDE, ADMINISTRATIVE LAW JUDGE
NYS DEPARTMENT OF ENVIRONMENTAL CONSERVATION

MICHAEL CARUSO, ADMINISTRATIVE LAW JUDGE
DEC OFFICE OF COMMUNICATION SERVICES

ALSO PRESENT:
MARIA KATCHMAR
ANDREA LINTON
STEPHEN WATTS
GLENN GOLDSTEIN

March 11, 2021
5:00 p.m.

Reported by:

Karen A. Nickel
Certified Realtime Reporter

P R O C E E D I N G S

JUDGE McBRIDE: We are going to start our hearing now. Good evening, ladies and gentlemen. My name is Molly McBride and I am an Administrative Law Judge with the New York State Department of Environmental Conservation.

I will be presiding over today's public comment hearing to accept comments on the application of Brooklyn Union Gas Company.

The New York State Department of Environmental Conservation has issued a draft permit and made a tentative determination to issue an Air State Facility permit to the Brooklyn Union Gas Company, doing business as National Grid, for the operation of their existing permitted Air Title V facility known as the Greenpoint Energy Center located in Brooklyn.

This public comment hearing is being held through the Webex electronic webcast platform. Notice of this hearing was published in the February 3, 2021 edition of the Department's Environmental Notice Bulletin and in the February 5, 2021 issue of the Brooklyn

Daily Eagle.

Assisting me today with the hearing are Administrative Law Judge Michael Caruso and, from the DEC's Office of Communication Services, Maria Katchmar and Andrea Linton.

For members of the public, I will introduce the panelists who are attending here today. Our list of panelists are as follows and their affiliation:

First, as I indicated, I am Molly McBride and I am an Administrative Law Judge with the DEC. Michael Caruso is also an Administrative Law Judge with the DEC. We have Maria Katchmar from the DEC, a Donna Roberts from the DEC, Andrea Linton, DEC, Caitlyn Nichols, DEC, Cathy Waxman from National Grid, Glenn Goldstein from National Grid, Karen Nickel is our court reporter, Rodney Novara is from DEC and Stephen Watts is DEC.

There are people tonight who are attending this hearing over the Internet and there are people who are participating by phone. In either case, you should only have audio input from one device. Otherwise, you may experience problems with feedback.

Everyone has been muted upon entry. If you experience any technical issues during this hearing, you may call the following phone number, Area Code 518-402-8044. That number again is Area Code 518-402-8044.

For those of you attending over the Internet, that number is available in the slide presentation.

We also have a chat feature on the screen. For those of you attending via Internet, you can let us know in that chat if you are having any technical issues.

The purpose of today's public comment hearing is to allow members of the public to comment on the project. Tonight is not a question and answer session. Comments will be accepted at this hearing tonight. We had a hearing earlier this afternoon at 1:00 p.m. and we had a hearing last night. We will have one more session on March 18th at 5:00 p.m.

Written comments will be accepted until March 22, 2021. The Department will consider all written comments received by E-mail by March 22, 2021 or postmarked by March

22, 2021. The Department gives equal weight to written and oral comments.

For those who are attending this hearing via the Internet, we have the information on the screen as to how to submit written comments. In a minute I will read for those of you who are attending over the phone the mailing address and the E-mail address.

Anyone who wishes to speak today was required to register to speak by March 5, 2021. Today we will call on elected officials first and then we will call on all registered speakers in the order in which they registered.

Due to the number of people who wish to speak, we are going to limit each speaker to three minutes. Please be respectful of that time limit. If you have not completed your remarks after three minutes, we will ask you to conclude your remarks. There will be no exceptions to the three-minute time limit.

For those attending over the Internet, there will be a three-minute timer on the screen to help you keep track of your time. If you're attending by phone and have gone past your three-minute time limit, we will let you

know to please conclude your remarks.

We will call your name when it is your turn to speak. At that time, your line will be unmuted. If you have attended by phone, we will ask you when we call your name to press Star 3 on your phone to raise your hand so that we know which line to unmute.

If you are attending by the Internet, we have a list with your name and we will know which line to unmute. Again, when we call your name and you are attending by phone, we will ask you to press Star 3 on your phone. Please don't do that until we call your name.

When you make your statement, please speak loudly, slowly, clearly. All comments this evening are being recorded by a court reporter.

Before we begin with public comment, DEC staff will give a brief presentation, and then National Grid will give a brief presentation regarding the project. First, we will hear from Stephen Watts from the DEC.

Go ahead, Mr. Watts.

MR. WATTS: Good evening, Judge McBride, members of the public, elected

officials and representatives. My name is Steve Watts, and I am the regional permit administrator for the New York State Department of Environmental Conservation, Region 2.

On May 11, 2020, the Department received an application from the Brooklyn Union Gas Company, doing business as National Grid, for a Part 201 Air State Facility permit for the continued operation of their existing permitted Air Title V facility, the Greenpoint Energy Center, located at 287 Maspeth Avenue in Brooklyn.

With this application, National Grid proposes to downgrade their current Air Title V permit to an Air State Facility permit by capping facility-wide oxides of nitrogen emissions, a/k/a NOx, to 24.9 tons per year. The Air Title V permit will be relinquished and discontinued upon issuance of an Air State Facility permit.

This downgrade will result in a lower total NOx emissions limit, as the current Air Title V permit has a total NOx emissions limit of 47.4 tons per year.

Additionally, the facility also

proposes to install two new 42.76 MMBtu per hour vaporizers to be used to vaporize liquified natural gas.

The application states that the two new vaporizers are proposed to increase the facility's send out capacity. This will not affect the overall storage capacity of the LNG tank. National Grid's presentation will contain more detail on their proposal.

The Department determined that the Greenpoint Energy Center's permit application was technically and administratively complete and a Notice of Complete Application was issued in November 2020. The public comment period associated with that notice remains opened until March 22, 2021.

It should be noted that following a recent discussion, National Grid has amended its application to reduce the proposed project scope and, as a result, no longer proposes to install two new compressed natural gas, CNG, injection heaters. The CNG heaters originally included in the application were proposed in order to supplement natural gas supply by injecting CNG delivered by trucks, as needed,

on a temporary basis during periods of peak demand.

The Department reviewed the amended application, revised the draft permit and provided notification to interested parties, including elected officials, environmental groups and community-based organizations, on March 1, 2021. All information, including the original materials, the amended application, the new draft permit and how to provide written comments are available on-line.

If you are only participating on the phone, you can contact National Grid at AirPermit@GreenpointEnergyCenter.com or by telephone at (718) 749-9539 to obtain links or the information directly.

As indicated in the notice for tonight's hearing, your verbal and written comments are being accepted tonight at this hearing and written comments will continue to be accepted by the Department until March 22, 2021.

Thank you.

JUDGE McBRIDE: Thank you, Mr. Watts. Next we will hear from National

Grid, Glenn Goldstein.

Go ahead, Mr. Goldstein.

MR. GOLDSTEIN: Thank you and good afternoon again, Judge McBride, Judge Caruso, Regional Permit Administrator Watts, select members of the DEC staff, elected officials, members of the community and the National Grid team.

My name is Glenn Goldstein, director of gas project management for National Grid. This presentation provides a brief summary of the Greenpoint vaporizers project and completed air permit application.

Existing interstate gas pipelines that deliver gas to National Grid are unable to meet peak winter demand on their own without support from the Greenpoint LNG facility in operation since 1968.

The plant liquefies and stores gas from our system during periods of low demand, typically the summer, and sends back out during periods of high demand, winter.

The vaporizers are operated infrequently, but are critical to the overall gas supply portfolio operating under two

scenarios; one, during the coldest days of winter, typically less than 15 degrees Fahrenheit, when extreme cold envelopes the region; two, due to interruption in upstream supply from interstate pipelines. When they fail, we need vaporizers.

National Grid must be prepared for winter storms and weather extremes ensuring the availability of gas to customers for heating.

The Vaporizers 13/14 project is part of the non-pipeline solution in the company's natural gas long-term capacity supplemental report with the State based on detailed analysis and extensive feedback from the public.

Before you is a one-line diagram of the LNG liquefaction process. Gas from our distribution system flows into the facility, where it undergoes a phase change from gas to liquid through a process called liquefaction.

Liquid is stored in tanks at a temperature of negative 260 degrees Fahrenheit at, approximately, 1-600th the volume of natural gas. This stored energy capacity is a buffer that balances the system demand and

supply during winter.

When gas system operations calls for additional supply, LNG is pumped into the vaporizers where the liquid is warmed and returned to a vapor before being sent back out into the gas distribution system.

In May of last year, as indicated by the regional administrator, National Grid filed an application covering the construction of two new vaporizers and CNG transfer station at our Greenpoint facility. The subject filing is a downgrade from the existing Title V permit to a state facility permit.

On the left, the existing permit details 47.4 tons of NOx per year emissions allowance.

On the right, the new permit details the downgrade to 24.9 tons per year under the new permit.

National Grid has determined that the new vaporizers, 13 and 14, can be constructed in time to meet peak demand. As such, the company has withdrawn the CNG transfer station from this application.

The amended application no longer

includes CNG injection and associated trucking.

Over the past 12 years, approximately, 70,000 new natural gas customers have connected to the National Grid system.

National Grid has a duty to serve our customers in all types of weather. Critical to serving our customers is effective contingency planning which avoids the need to shut down gas service, leaving customers in the cold. Vaporizers 13 and 14 do not increase annual output from the Greenpoint LNG plant or the frequency of plant operation.

The plant will be operated in conjunction with our demand response programs to ensure continued service to our customers in Brooklyn and Queens on the coldest days of winter.

Contingency planning is needed to manage and mitigate risk, thereby avoiding large scale outages that are difficult to recover from, especially when combined with freezing temperatures.

Vaporizers 13 and 14 do not increase LNG storage at the Greenpoint facility. LNG tank capacity remains the same. New vaporizer

units allow the facility to vaporize this current annual capacity at a faster rate to meet demand, with built-in redundancy in the event of equipment failure.

In addition to our energy efficiency and gas conservation measures, this is one of the non-pipeline alternatives needed to meet peak demand pursuant to National Grid's obligation to serve.

Though proposed to be funded in the same rate case, vaporizers and MRI, also known as Metropolitan Reliability Infrastructure, are different projects. The current phases of MRI are completed and the next phase will not proceed without State approval from the Public Service Commission or PSC. MRI allows the system to operate more efficiently and reliably by resolving a bottleneck in the gas distribution system, but does not add any additional supply.

Vaporizers 13 and 14 are needed to support customers by ensuring adequate supply to meet peak demand, with or without the construction of MRI.

In conclusion, as we transition away

from carbon-based fuels, we must continue to maintain our infrastructure while reliably serving our gas customers. Without LNG vaporizers, a significant number of customers in Brooklyn and Queens could be at risk of losing heating when they need it most.

Gas outages may persist for an extended duration, sometimes measured in days or weeks, until pressure is restored in the system.

Our commitment through this project reaffirms National Grid's requirement to ensuring the energy security for New York City while we undergo this transition to decarbonizing our energy future.

Thank you, and have a good evening.

JUDGE McBRIDE: Thank you. I am now going to read off the mailing address for submission of written comments for anyone who is attending by phone and doesn't have access to the screen where we have the address listed. The mailing address for submission of written comments is Caitlyn Nichols, N-I-C-H-O-L-S, Caitlyn Nichols, New York State DEC, Region 2, 47-40 21st Street, that's 47-40

21st Street, Long Island City, New York 11101.

And the E-mail address is DEP.R2@DEC.ny.gov. That E-mail address again is DEP.R2@DEC.ny.gov.

We are now going to begin taking public comments. As I said earlier, we will call your name when it is your turn to speak. At that time, your line will be unmuted if you have attended over the Internet. If you attended by phone, we will call your name and we will ask that you press Star 3 on your phone to raise your hand so we can unmute your line.

Please do not press Star 3 until we have called your name. When you begin making your comments, please begin with your name and your address. And if you're speaking on behalf of a group or someone, please identify who you are representing.

I'm going to read the list of our first ten speakers so people can be prepared.

Our first ten speakers, Rick Echevarria, Sarah Vogwill, Chi Osse, Lincoln Restler, Sofia, last initial M, Jane Pool, Laoise Mac Reamoinn, Shaun Gatter, Willis Elkins, Joanne Boger. And I apologize if I

mispronounce anyone's name.

Go ahead, Judge Caruso.

JUDGE CARUSO: Thank you, Judge McBride. And once again, I will also apologize in advance if I mispronounce your names, and make sure you state your name clearly for the court reporter when you begin speaking.

So I am going to call the first speaker, Rick Echevarria. And I didn't yet see if Rick is on-line. I don't see Rick on-line. So Rick, if you are calling in, please press Star 3 to raise your hand and I can unmute you.

JUDGE McBRIDE: I do not see a raised hand, Judge Caruso.

JUDGE CARUSO: I do realize some names I will be calling probably have registered, due to conflicts, to speak on the 18th but I'm going to call their names anyway, just so I make sure I don't miss anybody.

Sarah Vogwill. I don't see Sarah's name as being logged in. So if you are on the phone, Sarah, and could press Star 3, I will unmute you.

JUDGE McBRIDE: I do not see a

raised hand, Judge Caruso.

JUDGE CARUSO: Thank you. The next speaker is Chi Osse, and I don't see Chi here either as logged in. So if Chi is on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Lincoln Restler, and also I don't see Lincoln logged in. So if Lincoln could press Star 3 if you are on the phone, I will unmute you.

JUDGE McBRIDE: I do not see a raised hand, Judge Caruso.

JUDGE CARUSO: The next registered speaker is Sofia M. So if Sofia M has called in, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. The next speaker is Jane Pool. And if -- I don't see Jane logged in, so if Jane Pool has called in, please press Star 3 and I will unmute you.

All right.

JUDGE McBRIDE: I do not see a

raised hand.

JUDGE CARUSO: Thank you. The next speaker is Laoise Mac Reamoinn. I don't see Laoise is logged in. So if Laoise has called in, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you, Judge. The next speaker is Shaun Gatter, and I also do not see Shaun logged in. So I would ask Shaun to, if Shaun is on the phone, to press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Willis Elkins. Again, I do not see Willis logged in. So if Willis is on the phone, I would ask Willis to press Star 3.

JUDGE McBRIDE: I do not see a raised hand on my end.

JUDGE CARUSO: Okay. And our next speaker is Joanne Boger. Joanne, could you raise your hand by pressing Star 3? It's not showing on my screen, but mine seems to be a little time delay. There we go. Thank you.

MS. BOGER: Hello.

JUDGE CARUSO: You are unmuted. Please start.

MS. BOGER: Hi. I am Joanne Boger, a Brooklyn grandmother, who is really alarmed by the threat of global warming and by the failure of my own generation to take the prompt decisive action that we should have. But I am encouraged to listen to so many voices at these hearings in support of our state's essential climate goals, and I believe we still have time, but we really need to act.

I urge the DEC to deny the Greenpoint Energy Center air permit. If we needed more fracked gas vaporizers at peak demand times, this would not be the place to put it. Because of centuries long history of polluting industry there, the neighborhood cannot bear the growth of any further fossil fuels infrastructure. It's just a matter of environmental justice.

Furthermore, the current proposal runs counter to the Climate Leadership and Community Protection Act. We are told that once LNG vaporizers start the process of

delivering stored gas to customers quickly raising gas output, if there is an extremely cold period, well, a better handling of extreme cold would be implementing demand redundancy. For example, like those already in use in utilities to handle summertime peak demand.

If offered a small incentive, many customers would agree to lower their thermostats and forego using gas appliances upon a signal from the gas company that supply is running short. Our laws could be changed so landlords don't have to keep the full 68 degrees temperature during these rare cold emergencies.

This is the kind of creative thinking we need in order to meet the goals of the CLCPA, and we can only succeed on these goals if we forego new investments, like this proposal, that would lock us into extended reliance on gas.

I feel that, instead of plans to downsize gas, the gas company is engaging in fear mongering disinformation. They speak of ways -- they try to raise our fears of a power outage during winter lasting days, even weeks,

and they hint that they cannot hook up new customers without this project.

The company has not explored common sense answers to the problem of peak period demand and, thus, they fail to show a true need for this project.

That's why I hope you rescind the negative declaration and deny the air permit for this project. Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Ken Schles. I'm going to unmute you.

MR. SCHLES: My name is Ken Schles. The DEC must rescind its negative declaration and deny National Grid's air permits. I am the father of two. My son is a junior at Brooklyn Tech. My daughter majors in environment studies with a minor in global poverty and inequality at UC Santa Barbara. My wife is a New York City public elementary school principal.

My family has made Brooklyn its home for over 120 years. My father labored in a shipyard on Newtown Creek 75 years ago near National Grid's proposed LNG site.

The pandemic which has transformed our lives illustrates how our fate is intimately tied to the environment and how economic status harms the most disadvantaged. National Grid exports the plant for profit at great peril to us all.

Fossil fuel pollution accounts for 20 percent of all deaths annually. It has cut life expectancy in the United States by ten years. New York City is sensitive to the effects of climate change and is prone to flooding from rising seas and storm surges.

Heat waves, droughts and aerosol pollution exacts a constant debilitating stress on life within our borders. All New Yorkers, but especially those living in environmental justice communities, disproportionately suffer high mortality rates and diminished outcomes. High rates of asthma and cardiovascular disease exist in the same overburdened communities where National Grid locates transmission and power facilities, precisely where it wants to situate this LNG facility, on a highly polluted flood plain.

National Grid's proposal to add two

LNG vaporizers would continue emissions of toxic air pollutions, including particulate matter, volatile organic compounds, methane and nitrogen oxides against federal air quality statutes that New York already misses.

We can no longer afford the release upstream and down of more climate busting, smog inducing gases. It goes against the CLCPA to electrify our energy systems by 2050, burdening rate payers with the soon to be stranded asset.

Mean temperatures in Brooklyn have increased 2.1 degrees over historical norms, far above the 1.5 degree Celsius limit recommended in the Paris agreement. Cardiovascular deaths have risen as a result.

Our prime example of the negative effects of environmental pollution, though difficult to tie any one case to any particular source statistically, I think environmental victim's profile.

As a child raised poor in Brooklyn and south Queens and into my adulthood, I suffered from asthma. In my mid 50s, I had a heart attack. There were days I missed school because of my asthma, but more growing up I was

excluded from participating in so many simple pleasures like running in the schoolyard with friends.

Heart disease will shorten my life. Having had a heart attack reminds me daily that my life could end abruptly, leaving my children not yet independent, fatherless.

From a community perspective, there is no reason, be it economic, public health, environmental or, even as National Grid speciously claims, reliability to continue to dump toxic climate-altering gases into the atmosphere. It diminishes lives, breaks families apart.

Environmental pollution has diminished my life and the life of too many that I have loved. The DEC must rescind its negative declaration and deny National Grid's air permits.

JUDGE CARUSO: Thank you.

MR. SCHLES: Thank you.

JUDGE CARUSO: Our next speaker is Luis Booth. I do not see Luis is registered or logged in. So if you are on the phone, please press Star 3. And I would ask

Ken Schles to lower his hand -- or not Ken, but is Joanne still --

JUDGE McBRIDE: Yes, it's Ms. Boger's hand. If she could press Star 3 on her phone.

JUDGE CARUSO: If Luis Booth is on the phone, please press Star 3. All right. I do not see a raised hand.

So our next speaker is Saylor Pochan, and I am going to unmute you.

SPEAKER POCHAN: Thank you. I am here, Judge, I am not a cat. Do you want me to start?

JUDGE CARUSO: Yes.

SPEAKER POCHAN: I'm Saylor Pochan, they/them, from Far Rockaway, Queens. I am a National Grid customer. We in Far Rockaway have just spent -- I, personally, just spent over three years of my life beating back a proposed natural gas pipeline in our backyard, the Williams pipeline, for which National Grid would have been the sole customer.

Before that, we stopped Port Ambrose in our backyard and, while all the time we're

recovering and still are recovering from Super Storm Sandy, people of Brownsville, Bushwick, Williamsburg and Greenpoint, and now we are standing with them, we can't let these vaporization stations be built when we know it is the wrong path for the future and that the people of Greenpoint have already suffered enough environmental injustice for other people's status quo and game.

Why is this discussion even being had? I feel like I am having to say the same thing over and over and over for years as a National Grid customer to counter their fear mongering.

I don't want to pay and possibly even have my rates raised for you all to build more and lock us into more fossil fuel infrastructure, especially when there is no data to support that there is more demand for natural gas in New York or that you need peak supplies and your customers are demanding better options.

There are so many non-fossil fuel options to get our energy from. And why on earth are you building pipelines and vaporizer

stations?

National Grid, you work for us. State officials, you work for us. Do the right thing here. Protect the people of Greenpoint and North Brooklyn and Long Island City. Protect my community from the devastating consequences of climate change, which National Grid has stated themselves that these vaporizers would accelerate by putting more CO2 in the atmosphere.

Please deny this permit. Climate goals provide good jobs for people, permanent jobs with alternative energy things. Thanks very much from Far Rockaway and please deny the permit. I yield my time.

JUDGE CARUSO: Thank you. Our next speaker is Rachel Wax. I do not see that Rachel is logged in, so if Rachel is on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. The next speaker is Kathy Malcomson and, again, I don't see Kathy Malcomson listed as logged in. So if Kathy is on the phone, please press Star

3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you, Judge. Our next speaker is Ben Stillerman. I am going to unmute you.

MR. STILLERMAN: Hi. Thank you. My name is Ben Stillerman. I live on the border of Bed-Stuy and Bushwick, and I would like to add my voice to the chorus of others opposing the LNG project and the associated air permits and as well as all fossil fuels expansion.

I also want to say I support the city officials and environmental groups who walked out of the rate case meeting today because they refused to participate in this community input, when it was kind of evident that National Grid does not really intend to take that input seriously and kind of ignore or skirt environmental standards and the community's wishes.

It's 2021 and we are already seeing the effects of the time of the climate crisis. My friends and family suffer the health effects

of long-term pollution in New York, and we need to stop adding to this.

National Grid says the new project will help meet high demand, but as other commenters have pointed out, this is a dubious claim. Recent reports suggest that National Grid is overestimating that demand and, in the long term, would just have excess capacity, which goes against New York City and state climate laws and just common decency.

So we need to stop investing our futures in more fossil fuel, especially when it's just to serve the profits of National Grid. Thank you. That's it.

JUDGE CARUSO: Thank you. Our next speaker is Victoria Cambranes. And Victoria is not logged in. So if you are on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you, Judge. Next speaker is Sarah Sitzler, and Sarah is also not logged in. So if Sarah is on the phone, please press Star 3, and I will unmute you.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Jennifer Gutierrez, and I am going to unmute you.

MS. GUTIERREZ: Hello. Can you hear me? Thank you so much. My name is Jennifer Gutierrez. I live in Bushwick. Thank you for this opportunity.

My position today is going to be in vehement opposition to this proposal. The communities that are around this site in Greenpoint, obviously, for those of us that are from here know that the impacts go far wider than just the National Grid site. I'm talking about Williamsburg. I'm talking about Bushwick. I'm talking into parts of Bed-Stuy and I'm talking about our friends in NYCHA.

And we have to understand that the history of environmental racism needs to be called out every step of the way every single day because this is our reality, and we don't have the luxury of dealing it with every time we have a new application like National Grid does.

As a National Grid customer, my neighbors and I absolutely do not want to pay for any infrastructure that does not speak to resolving for climate change.

An approval and even a single dollar invested that goes into passing this proposal undermines what our community has been organizing around for years, which is that we are here and we emphasize our right to self-determination and that our fight for environmental justice is a movement.

Please do not get it twisted. We are a large movement, really well-informed, doing our research and knowing good and well that the options -- that the proposal that is before us today is not an isolated proposal. It is not going to just impact a small community. It is going to impact all of us, primarily people of color, primarily working class Brooklyn residents.

DEC has a chance to play an active role in holding National Grid accountable. This is your responsibility. National Grid's threat to withhold service is a slap in the face to the justice that we deserve.

And so I just want to reiterate that I vehemently oppose the proposal. I want to also share that National Grid has not been a partner, has not been acting in good faith for the last two years -- the pipeline, I would say the information that went out was incredibly opaque, incredibly misleading. They did not go through the effort necessary to inform a community, largely communities of color, immigrant communities, language access was never a priority for them.

And so I think that for us to even consider any proposal moving forward that does not invest in green jobs, in green infrastructure, but prioritizes fossil fuel, with a corporation that does not take its residents and its clients into consideration is a joke and slap in the face to us.

So I would like to conclude by saying I vehemently oppose and encourage everyone here that is registered to speak to oppose.

Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Lizzie Hurst, and give me a

second. Lizzie, I am unmuting you.

MS. HURST: Hi. Can you hear me?

JUDGE CARUSO: Yes.

MS. HURST: Hi. My name is Lizzie Hurst and I currently live in Red Hook, Brooklyn. I used to live in Maspeth. Thank you for holding these hearings so that those who will be most immediately affected by the decision can be heard.

I want to thank everyone else for their very well made points. This National Grid project is immoral, dishonest, greedy, racist, dangerous and deeply regressive, in my opinion.

I work for an education non-profit where I mentor teenagers and children from all over NYC, including along the pipeline. I am not an expert in any of the legal or scientific details of this permitting process, but as someone who has spent their entire career investing in the future of youth, I feel like I have an obligation to speak up on their behalf.

I wish that DEC would do its job to defend the health and well-being of our future

generations, so that myself and others speaking tonight don't have to. The building in Red Hook where I work was five feet under water in 2012. We know that the primary cause of the changing climate is the burning of fossil fuels.

With this project, National Grid wants to lock us into fossil fuels for longer for their own profit. Expanding its LNG facility in Greenpoint to increase profit will further delay the just, necessary and exciting transition to renewables.

The proposed LNG vaporizer would increase emissions because the conversion from liquid to gas requires a highly energy intensive process. We must see these vaporizers as part of a larger energy conversion and, of course, a larger segmented plan.

This project works directly against the vision of a positive future that I have worked so hard to create for young people. National Grid has implied that this infrastructure is necessary as we transition to other fuel sources, but we need to start

building those alternative fuel sources now, rather than pour money into regressive models. We should put a moratorium on building or expanding nonrenewable energy infrastructure and focus on creating green jobs for this next generation.

Communities near this project deserve to heal and our entire city deserves a stronger, more optimistic, accountable, transparent and loving vision. Let's imagine what else we can do with these hundreds of millions of dollars and let NYC show the rest of the United States what it looks like.

I am proud to live in New York, which has passed the CLCPA. These targets cannot be met if we don't rapidly change existing power systems.

Please keep the mandate of CLCPA in focus and insist that no new fossil fuel infrastructure be built. The DEC has good grounding clearly in science and law to rescind the negative declaration and deny the LNG permit. Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Lucas Kane. Lucas is not

logged in. So if Lucas is on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you, judge. Our next speaker is Laura Hofmann. I am going to unmute you.

MS. HOFMANN: Good evening. My name is Laura Hofmann. I am a lifelong resident of Greenpoint and steering member of Outrage.

I was asked to deliver a comment for Organizations United for Trash Reduction and Garbage Equity regarding the LNG expansion. We demand that New York State DEC rescind its negative declaration and deny National Grid's air permit. Our community needs less truck traffic and environmental burden, not more.

I agree. DEC is wrong. The LNG facility expansion would indeed cause adverse impacts on the environment. DEC is fully aware of all the environmental issues and health impacts that the north Brooklyn community bears. National Grid illegally segmented parts of the project so it could be pushed through

with DEC's help.

DEC is behaving like an environmental broker, as it did for the oil companies and other environmental offenders along Newtown Creek. The pipeline and related projects came into the community sneakily for a reason. It's dangerous and wrong, and everyone knows it.

My family has been to hell and back due to the poor environment with autoimmune diseases, brain diseases, cancer, asthma, birth defects that took the lives of three of my grandchildren. Two of the babies from two separate sets of twins and same mother died from Trisomy 18. The doctor said that it was so rare for this to happen, that it was rarer than being struck with lightning twice.

Here in Greenpoint, in this area 51, the environmental exposures and impacts are very real. I worry every day about my family. Who will be the next to develop cancer, like I did, kidney cancer, and new projects keep coming at the community.

The additional trucks that would be generated with this expansion are a huge threat

to the community, particularly to those closest to the site, an environmental justice community. Trucks would be carrying highly explosive gas in the midst of the Newtown Creek federal Superfund site and flood zone. This expansion defies environmental justice principles, fair share principles, as well as New York City climate change laws.

The expansion spits in the faces of community residents like me who are already sick from the environment. DEC is backed by science and law to deny the National Grid air permit. But will they?

The DEC must do the right thing and rescind its negative declaration and deny National Grid's air permit and deliver us from yet another environmental nightmare and offer environmental healing instead.

Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Jeremy Jones. I don't see Jeremy logged in. So if Jeremy is on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand, Judge Caruso.

JUDGE CARUSO: Our next speaker is Jeanette Garramone, and I don't see Jeanette logged in. So if you are on the phone, please press Star 3, and I will unmute you.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Patricia Rodriguez, and I do have -- I see a, Pati so I am going to unmute Pati.

MS. RODRIGUEZ: Hi. Yes. Can you hear me?

JUDGE CARUSO: We can hear you, yes.

MS. RODRIGUEZ: My name is Patricia Rodriguez. I grew up in Bushwick my entire life. Brooklyn has been home to my family for over four generations, so this fight is personal. I am fighting for my people here, my daughter, who happens to go to the public school that is right by the pipeline, PS 376 here in Bushwick. So I am here fighting for my daughter, too, my family, and my home.

I am a homeowner here in Bushwick,

too, and also a client of National Grid, obviously because they have a monopoly on this energy.

I am here as part of the Frack Outta BK or the Frack Outta Brooklyn Coalition and as a community organizer for Metaspace and Casa Resiste, a collective base here in Bushwick, Brooklyn, that uses art and direct action to fight displacement and criminalization of low income black and brown families. I am here to speak on behalf of those families.

National Grid has built a fracked gas pipeline in low income black and brown indigenous communities here in neighborhoods, near our homes, daycares, community gardens, schools in Brooklyn, including my daughter's, as I said, the elementary school which is right by the dangerous pipeline.

Environmental racism is always perpetuated in poor, black, indigenous POC neighborhoods because people in power count on poor people's lack of time and resources so that they are unable to fight this at home.

But Brooklyn residents never consented to our own destruction and we never

will.

12 Brooklyn land defenders have already been arrested in the past few months trying to stop the construction of this toxic pipeline, because we know that this pipeline is deadly and can lead to toxic air pollution and toxic local drinking water.

Scientific and medical studies show increases in serious health outcomes, asthma, cancer, birth defects, among others, associated with living near these fracking sites.

And it is not only communities located near the fracking sites that suffer health consequences from fracking, obviously, as other people have mentioned before. Pipelines and related infrastructure expose these communities to accidental leaks, deliberate releases of gas known as blow-downs and sometimes even devastating explosions.

That's what's coming to Brooklyn. That's what's already here. And we are in imminent danger right now because that gas is flowing right now for National Grid.

Reducing greenhouse gas emissions from existing sources is already a monumental

challenge. The last thing we should be doing is making that existing challenge greater. Instead, we should put a moratorium on building or expanding non-renewable energy infrastructure. The DEC has good ground in science and law to deny this Greenpoint LNG permit.

The CLCPA requires that we dramatically reduce greenhouse gas emissions, but National Grid's proposal to expand their Greenpoint LNG facility will do the exact opposite. LNG is even worse for the climate than regular fracked gas because of all the energy needed to super cool it into a liquid and then heat it back up into gas. LNG also relied --

JUDGE McBRIDE: Can you complete your --

MS. RODRIGUEZ: Can you hear me?

JUDGE McBRIDE: Yes. Your time limit is up. If you could just complete your remarks, please.

MS. RODRIGUEZ: Oh, I vehemently say that we need to deny these

permits, the air permits, because it is putting our families in danger, and we need to move away from these extracted resources and need to go towards green energy and more solar-powered energy. We can't keep destroying the earth the way we have been doing here. Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Steve Fox. If Steve is on the phone, would you please press Star 3.

I do not see a raised hand. So I'm going to call -- the next speaker is Gregory Barker. And if Gregory is on the phone, could you please press Star 3?

JUDGE McBRIDE: I do not see a raised hand?

JUDGE CARUSO: Thank you. Our next speaker is Dasha Tanner. If Dasha is on the phone, could you please press Star 3 to raise your hand?

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you, Judge. The next speaker is Sheila Geist. And if Sheila is on the phone, please raise your hand by pressing Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Timothy Artz, and Timothy is not logged in either. So if Timothy is on the phone, please press Star 3 to raise your hand.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. The next speaker is Ben Abrams. If Ben is on the phone, please press Star 3 to raise your hand.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you, Judge. Our next speaker is Sally Gellert. Sally, if you are on the phone, please press Star 3 to raise your hand.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you, Judge. Our next speaker is Bridget Klapinski. I'm going to unmute you.

MS. KLAPINSKI: Good evening. Can you hear me?

JUDGE CARUSO: Yes, we can.

MS. KLAPINSKI: Good evening. My name is Bridget Klapinski, and I am a Rockaway resident. Living in a community on the front lines of climate change, rising seas, extreme weather and violent storms such as Super Storm Sandy, I am acutely aware of the dangers these pose to life, property and economy.

I ask the New York State DEC to rescind its negative declaration and deny National Grid's air permit for this project. National Grid's proposal would substantially increase greenhouse gas emissions of carbon dioxide and methane and, when considered along with the full life cycle of fracked gas, will take emissions even higher. This does not align with New York State's climate goals.

While the CLCPA requires that we reduce greenhouse gas emissions, National Grid's proposal to expand their Greenpoint LNG facility will do the exact opposite. Even by National Grid's own calculations, the project will significantly increase harmful emissions that contribute to climate change.

In addition, LNG's greenhouse gas

emissions are, overall, 30 percent higher than conventional natural gas. At a moment when New York absolutely must reduce greenhouse gas emissions and turn away from dirty, dangerous fossil fuels, a project like this moves us in the wrong direction. We need clean air. We need clean water. The health and safety of New Yorkers depends on it.

We face many challenges ahead, most urgently the climate crisis. So many New York communities are especially vulnerable to the impacts of climate change. As many of us have witnessed and experienced first-hand, the results are costly and life-threatening.

We implore DEC to fulfill its obligation based on laws and science and deny the permit pertaining to this project. Thank you for the opportunity to comment.

JUDGE CARUSO: Thank you. I'm going to jump back here, Your Honor, because I saw that Willis Elkins is -- has joined us. He was called very early on. So Willis, I'm going to unmute you.

MR. ELKINS: Hello. I actually am registered to speak next week. I

had a conflicting event earlier, so I'm going to submit my testimony next week.

JUDGE CARUSO: Very good. Thank you.

So our next speaker is Joan Flynn. If Joan could press Star 3, if you have called in, I will unmute you.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Elizabeth Adams. Elizabeth, I am unmuting you.

MS. ADAMS: Good evening. My name is Elizabeth Adams. I am a proud Greenpoint resident and a National Grid customer, and I am here because, as a Brooklynite and New Yorker, I do not want more fracked gas running through our communities.

I am here to state my strong opposition to this LNG proposal. This plan goes against the health and well-being of our neighborhoods and does not plan for the environmental future that we need.

Greenpoint and north Brooklyn particularly have a long history of

environmental abuse. We have multiple state and federal Superfund sites and brown fields that need remediation. We have increasing rates of air pollution and we have public housing that is still facing the impacts of Super Storm Sandy, waiting for long overdue infrastructure upgrades. This is all rooted in environmental racism.

We have a lot of work to do to right the wrongs of the past, and yet we are here, instead, having to fight an actual expansion of fossil fuel infrastructure and even more environmental pollution.

Now is the time to move towards the climate future that we need. That means a hard shift to and significant investment in renewable energy. We know that things like offshore wind, geothermal and green roofs and solar are how we move forward, yet here this proposal is continuing to try to live in the past. This proposal willfully ignores the energy change that we need.

And I want to remind National Grid that New York passed historic legislation with the Climate Leadership and Community Protection

Act, which requires that we dramatically reduce our greenhouse gas emissions. Yet this proposal to expand the Greenpoint LNG facility would do the exact opposite and is in direct violation of the law.

I urge DEC to deny the permit for this. We do not need more fracked gas. We do not need fossil fuel infrastructure. Our communities deserve so much more. Our health and our environmental safety depends on it.

Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Rana Sioufi. Rana, I do not see you logged in, so if you are on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand, Judge Caruso.

JUDGE CARUSO: Thank you. Our next speaker is Steve Mazzucchi. Steve, if you are on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Our next speaker is Jesse Nieves. I am unmuting you. Jesse, please go ahead. Jesse may have stepped

away.

JUDGE McBRIDE: All right. We can come back.

JUDGE CARUSO: Okay. Our next speaker is Susan Wilcox. Susan, if you are on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Katie Horowitz, maybe Katie and Denny Horowitz. I am unmuting you.

MS. DENNY HOROWITZ: Hi. Good evening. Can you hear me?

JUDGE CARUSO: Yes.

MS. DENNY HOROWITZ: Hi. My name is Katie Denny Horwitz. I am a 20-year resident of Greenpoint and the executive director of the North Brooklyn Parks Alliance. It's the parks conservancy that has served the communities of Greenpoint and Williamsburg since 2003. And I'm speaking tonight on behalf of those park users.

Between 2018 and 2020, New York State invested millions of dollars in park improvements a few blocks from the proposed

site, turning Sgt. William Dougherty Park into a state of the art playground and a state park just down the road.

My organization worked with New York State on transforming nearly seven acres under the Kosciuszko Bridge from a dark abandoned state DOT lot into an innovative public space along the Newtown Creek that completed construction during the pandemic and it will open this spring.

Under the K Bridge park was designed as a destination for thousands of community members to experience cultural, recreational and environmental programs. Together, these two parks signal that the area where National Grid first settled in 1968 has changed.

The heavily industrial Newtown Creek waterfront, long avoided by pedestrians, is opening up for the first time in recent history, and I have seen them come. As the historic pollutants are addressed, in large part to the heroic advocacy of the Newtown Creek Alliance, I have seen those people come. They are children, they are families and they are neighbors, and they are walking, they are

biking, they are playing and they are exploring the area.

My opposition with this permit application is with those people in mind. My experience in the last two years, constructing and maintaining under the K Bridge park close by, has brought about two major public safety concerns impacted by this permit application; one, trucks, and two, air.

It's my understanding that the National Grid has agreed to revise their plan to remove additional truck traffic, so I am going to focus tonight on air quality, an issue I know is of top priority to DEC and its effort to advance environmental justice.

Indeed, on February 21 -- 23, the North Brooklyn Parks Alliance hosted a virtual panel discussion called Whose Air? Our Air! On various air quality monitoring initiatives in Greenpoint and Williamsburg, including the area around the proposed expansion, which struck me during that panel which featured the work of El Puente, North Brooklyn Neighbors and Newtown Creek Alliance, that all four non-profit organizations received funding from

this agency to monitor air quality here to better understand the health implications of the BQE construction and heavy industry.

Our community, with support from DEC, has spent years monitoring the effects which has demonstrated, without a doubt, that our air is already toxic and correlated with negative health outcomes, including asthma rates high enough among our children, that our local hospital had to open a dedicated pediatric asthma clinic to accommodate a surge in hospitalizations.

Given our DEC funded grant work and recording our local air quality, this agency is fully aware of our community's emotional, physical and financial investment to mitigate the existing threat to clean air going back generations, and I implore DEC to halt additional threats to clean air that our future children would have to deal with and, indeed, your future colleagues would need to address. Thank you.

JUDGE McBRIDE: Judge Caruso, Jesse Nieves is raising his hand.

JUDGE CARUSO: Okay. Jesse, I

am unmuting you.

MR. NIEVES: Hi. I am a lifelong Greenpoint resident. My family goes back three generations in Greenpoint. My grandfather was actually in the Navy and he was a longshoreman on the docks in Greenpoint. So my family has seen a lot of just the environmental waste and all the damage that has been done in Greenpoint.

I actually live on the northern part of Greenpoint, right next to a Superfund site, DuPont, DuPont Plastics. This is a giant site that really hasn't been treated, hasn't been taken care of, and we actually have a retirement home right across the street from it.

The impacts of this LNG facility is just going to be gigantic. It is located in a floodplain. With the projected sea level rise due to climate change, even more of the site will be prone to flooding. Storing hazard materials and fuels in an outdated facility prone to flooding is not prudent.

The Greenpoint LNG site has had a long history of noxious industrial uses and is

heavily contaminated. Adding more infrastructure on top of contaminated areas will make future cleanup more challenging.

LNG is also extremely dangerous. In 1973, an LNG tank exploded on Staten Island and killed 40 workers, resulting in a ban on new LNG sources in New York.

I am also very worried about these tankers and trucks driving around because I bike and it is already extremely dangerous to even bike around here. So more giant tanks driving around sounds really dangerous.

Also, recently, there has been about ten to 12 manhole cover fires in the last two months. So that just shows the infrastructure around here is not good and it's just more dangerous to build these places around.

I will also notice how they are also -- National Grid is building a pipeline which is, quote/unquote, separate from this work. This -- these two projects haven't really been told to the community. I mean, I am 25 and I learned about these projects well into their construction.

I have actually gone to press

conferences, protests at the pipeline. We've had calls to the Governor, to National Grid. They have not responded. They have not been honest with the community and I feel like this is just another dirty, wasteful use of our land that has already been destroyed.

They also are using this for gas and stuff that New York State is actually getting rid of. Apparently, the pipeline they want to put in won't be usable in ten, fifteen years. Why are we putting in a 40-year pipeline? Same thing with these LNG stations, these things are not needed, they are a danger to the community, and they are just ridiculously unfair to the black and brown communities of Brooklyn. Thank you.

JUDGE CARUSO: Thank you. Could you please lower your hand, too, please, Jesse. Thank you.

Our next speaker is M. Lipton. If you are on the phone, please press Star 3.

JUDGE McBRIDE: I don't see a raised hand, Judge Caruso. And could we try speaker Daisy Fernandez again, please?

JUDGE CARUSO: Hold on. Which

speaker are you asking for? I'm sorry.

JUDGE McBRIDE: Daisy Fernandez.

JUDGE CARUSO: Oh, okay. Is Daisy on the line here? Daisy, if you are on the line, could you press Star 3.

JUDGE McBRIDE: Okay. We can come back to her again.

JUDGE CARUSO: All right. So our next speaker is -- we didn't get anybody racing their hand for M. Lipton. So our next speaker is Melissa Rogers. If Melissa Rogers is on the phone, please press Star 3.

Okay. I am going -- I see Rachel Wax has raised a hand, so I'm going to unmute Rachel. We called Rachel earlier. And Rachel, you are unmuted.

MS. WAX: Hi. Okay. Thank you so much. I'm sorry for just staying here.

My name is Rachel. I am a former mechanical engineer, a current high school teacher, high school physics teacher and a resident/employee of New York. I am speaking to express my concerns and urge the DEC to rescind its negative declaration and deny

National Grid's air permit.

This project is antithetical to the goals and laws of our city and state. The CLCPA of New York State and the Green New Deal for New York City, all of which have been signed into law, do not align with this pipeline or transmission line for gas or whatever it is that National Grid wants to call this thing. It's all kind of the same thing to me.

We have very specific targets for clean energy to address the climate crisis, and building this pipeline does not align with our goals for our city.

Now, we know that radon and other air pollutants are very harmful to everybody, just in general, that are going to be affected by this, especially people that are living directly on top of the pipeline. This is a cost that should no longer be allowed as an externality for someone's profit.

National Grid is a national monopoly. They need to take our concerns very seriously and protect the citizens. The price is outlandish, especially looking at the state

of our city right now.

The city could go towards so many things, like community composting, which has been 90 percent defunded in 2021, urban gardens, incentivising solar, geothermal, education.

I could go on and on and on. I will not. We do not want this here. We do not want to pay for this. No to the North Brooklyn fracked gas pipeline.

Thank you.

JUDGE CARUSO: Thank you. And Rachel, if you could please lower your hand. Thank you.

Our next speaker is Tamara Gayer. I am going to unmute you.

MS. GAYER: Hello. Can you hear me?

JUDGE CARUSO: Yes, we can.

MS. GAYER: Amazing. So thank everyone for the opportunity to speak. I am very glad for the democratic process in this, and I would hope that those of you who are listening to us are also hearing us because there has been not one speaker so far who has

been for this project.

My name is Tamara Gayer. I am a decades long resident of the Southside of Williamsburg with family ties in this area for several generations. I am a mother.

I just want to start off by saying that I am really horrified at the innocuous presentation of what LNG gas is and that whole process that National Grid started this hearing off with.

We all know that the compression of this gas makes it exponentially more dangerous, and even so, more dangerous for children. And the attendant pipeline that goes along with this not only goes through many underserved, frankly, poor neighbors, but also along -- very close to very many public schools including our public school.

And if you just extrapolate from the numbers in public school, three quarters of the children are eligible for free or reduced lunch, nearly 85 percent of the children are children of color. So this is just simply not the future we want to build for them.

I can tell you that my ten-year old

is terrified about his future and he feels too young to influence it, but he knows that the clock is running out.

So right now, we really don't have any more time to invest in these things. Greenpoint itself, where this facility is located, is an incredibly toxic site, which is just so destructive to its own residents.

The thought of LNG gas running through those streets and through our streets is incredibly dangerous and the gas in this pipeline and pipelines in general are incredibly dangerous and all the more so for children.

Furthermore, New York State really rightly has banned fracking in its own territory, but we have to be just as protective as the landscape and of the children of the states from where this fracked gas is being trucked into our state.

So we can't allow this just because it is not in our backyard. It is coming through our streets. And just as destructive as it is to us, it is to them, and we are literally destroying the future.

The clock has run out for all of these fossil fuel solutions, and there really is nothing more to say about that. If we do not find a green energy solution right now, we are doomed. We cannot invest even another cent in this.

So I thank you very much for the time. And I really, really hope that you can hear that message, because we need to make a hard turn on this direction right now. I mean, it is almost too late already, and let's hope we can get one more Hail Mary in there. Thank you very much.

JUDGE CARUSO: Thank you. Our next speaker is Karina Hernandez. Karina, if you are on the phone, please press Star 3.

JUDGE McBRIDE: I don't see a raised hand, Judge Caruso.

JUDGE CARUSO: Thank you. Our next speaker is Hannah Firestone. Hannah, if you are on the phone, please raise your hand and press Star 3.

I don't see a raised hand so I'm going to call the next speaker, George Povall. George, if you are on the phone, please press

Star 3.

JUDGE McBRIDE: I don't see a raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Lauren van Haaften-Schick. I know that Lauren has registered for the 18th, but I thought I would call the name anyways. If Lauren is here, please press Star 3, and I will unmute you.

Next speaker is Sari Carel, C-A-R-E-L. If you are a caller, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Next speaker is Julieana Wallenstein. Julieana is also not logged in. So if Julieana is on the phone, please press Star 3.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you, Judge. The next speaker is Elizabeth Smith. If Elizabeth is on the phone, please press Star 3, and I will unmute you.

I do not see a raised hand, so our

next caller is Anne Bassen. If Anne is a call-in user, please press Star 3 and I will unmute you.

JUDGE McBRIDE: I do not see a raised hand.

JUDGE CARUSO: Thank you. Next speaker is Toby Bryce, and Toby is also not logged in. So if Toby is on the phone, please press Star 3.

I do not see a raised hand, so I'm going to call -- the next speaker is Donna Stein. Donna, if you have called in, please press Star 3.

I do not see a raised hand, so I'm going to call the next speaker, Jacqueline Pompei. Jacqueline, I am going to unmute you.

MS. POMPEI: Hi. Can you hear me?

JUDGE CARUSO: Yes.

MS. POMPEI: Great. Good evening, and thank you for the opportunity to join in the conversation.

My name is Jacqueline Pompei. I am a resident of South Williamsburg and am building my business in Greenpoint.

I work in the arts and culture sector which, as we all know, is one of the hardest hit industries in the city during the pandemic, but we are rebuilding. And what we have witnessed in New York City is that now that business travel and tourism has come to a halt, the survival of the city depends on the communities that have remained here throughout the economic crisis.

Greenpoint, Bed-Stuy, Brownsville, the communities in these neighborhoods have always been and will always be here. While the entire city has suffered throughout the pandemic, it has been the people in these working class communities that have maintained positions as essential workers for our stores, restaurants and the services that keep New Yorkers alive.

These are the people who have remained strong for the benefit of everyone living in New York, yet in light of this impending project, they will face the most immediate risk, the health and safety of themselves and their families.

Tonight I would like to emphasize

the unknown and unquantifiable human costs associated with this project. Allowing National Grid to expand its fracked gas infrastructure is not only disrespectful, it's a direct threat to our communities, our culture, and the soul of New York City.

I just want to say that today marks the tenth anniversary of the disastrous events in Fukushima, Japan, which cost the lives of tens of thousands of people, this long-term environmental impact still being determined.

We don't want to go this route. New Yorkers deserve to know that we are rebuilding a safer, sustainable future and are protecting our communities by protecting our open spaces, air, water and each other.

When tourism industries return to New York, we will attract them with beautiful parks, safer neighborhoods and lively arts and culture. We can't expect our economy to bounce back if we are pursuing dangerous negligent energy policies while marginalizing our citizens.

We cannot rebuild a better New York without our strong communities and we cannot

rebuild our city at the expense of its people for corporate gain.

Our communities have fought for this city. Now we need our public officials to stand up for us and to uphold their commitment to New Yorkers. So I am pleading to the Department of Environmental Conservation to rescind its negative declaration and deny National Grid's air permit.

Thank you.

JUDGE CARUSO: Thank you. Our next speaker is -- I am not going to attempt to pronounce it, but Jen something or other. Sorry about that. But I don't see Jen as a logged-in user, so if Jen C can press Star 3 on her phone, I will unmute the phone.

I don't see any raised hands. I'm going to go to the next speaker, Masaye F. If Masaye has called in, please press Star 3.

JUDGE McBRIDE: I don't see a raised hand, Judge Caruso.

JUDGE CARUSO: Our next speaker then is Quardean Lewis-Allen. And if Quardean could press Star 3, I will unmute you.

JUDGE McBRIDE: I don't see a

raised hand.

JUDGE CARUSO: Thank you. Our next speaker is Jermaine Fairweather. I do believe Jermaine has moved to the 18th, but I am calling Jermaine's name just in case Jermaine is here tonight.

Jermaine, if you are on the phone and you want to press Star 3, I will unmute you.

I don't see a raised hand so I'm going to call Jack Miller. I don't see the Jack logged in. So if Jack Miller is on the phone, please press Star 3 and I will unmute you.

I do not see a raised hand. Someone has asked in chat do we get to Shahana Hanif, and I was advised that she was not going to speak tonight. If Shahana is on the phone, please press Star 3 and I will unmute you.

JUDGE McBRIDE: Judge Caruso, we got an E-mail that Shahana cannot make it this evening.

JUDGE CARUSO: Okay. Thank you. And let's -- I want to call Daisy Fernandez again. If Daisy has joined us --

yes. Daisy, you are unmuted.

MS. FERNANDEZ: Perfect. Hi. My name is Daisy, and I am currently a resident of Bed-Stuy, Brooklyn. I am a law student and a first generation American who grew up in Queens, New York City, in a predominantly black and brown community. I have witnessed firsthand the devastating impact of environmental racism among communities of color. So I am here today to ask the DEC to rescind its negative declaration and National Grid's air permit which will further perpetrate environmental racism.

While there are many reasons why, I will share two today. One, environmental justice communities need healing, not more fossil fuel pollution; and two, this project is a climate disaster and violates state law.

On point No. 1, this project is being built through the predominantly black and brown working class neighborhoods. For many decades communities of color have been disproportionately harmed by the lasting impact of systemic environmental racism and inequality.

These communities need investment, transparency, accountability and repair from the DEC. At a time when communities of color are already hardest hit by Covid-19 pandemic, National Grid's proposal would contribute to higher rates of asthma, lung disease, cancer and other life-threatening illnesses in these communities who already face severe health disparities, including Brownsville, which has the highest rate of adult asthma in New York City. National Grid's proposal --

JUDGE McBRIDE: Daisy, can I interrupt you? Excuse me, I just want to interrupt you just to ask you just to slow down a little bit for the court reporter. We will give you a little extra time. I just want you to slow down for the sake of our court reporter.

MS. FERNANDEZ: Okay, perfect.

National Grid's proposal to add two new LNG vaporizers will increase emissions of air pollutant. The air quality in our region does not comply with federal standards and this project would make air quality even worse.

On my second point, the CLCPA

requires that we dramatically reduce greenhouse gas emissions, but National Grid's proposal will do exactly the exact opposite. By National Grid's own calculations, the project will significantly increase carbon dioxide and methane emissions. The project will lead to at least 63 percent increase in carbon dioxide and a 45.5 percent increase in methane.

But we also know that the company is grossly underestimating their emissions. Both New York State and New York City climate laws require us to reduce fracked gas used to meet greenhouse gas emission reduction goals. The LNG vaporizers are unnecessary and unjustified.

Reducing greenhouse gas emission from the existing sources is already a monumental challenge. The last thing you should be doing is making that existing challenge greater. Instead, we should put a halt on building or standing non-renewable energy infrastructure.

The DEC has good grounding in science and law to deny the Greenpoint LNG permit. And lastly, there is just no need for this. It is just capitalism doing what it does

best and profiting off the harm in communities of color. The DEC should rescind its negative declaration and deny National Grid's air permit. Thank you so much for your time.

JUDGE CARUSO: Thank you. You can lower your hand, please, Daisy.

Judge McBride, that was our last listed speaker.

JUDGE McBRIDE: If we have anyone who is in attendance that has not had an opportunity to speak yet and would like to make a comment on the record tonight, we would ask that you please raise your hand.

If you are on the phone, again, you would press Star 3 on your phone to raise your hand. And if you have joined us by the Internet, there is a small hand icon on the right side of the screen. If you click that button, that will raise your hand, let us know that you would like to make a comment.

Is there anyone in attendance now who has not yet had an opportunity to speak that would like to make a comment on the record?

I don't see that anyone has raised

their hand. Again, if you are on the telephone, you would press Star 3. If you joined us by the Internet, there is a small hand icon on the right side of the screen. Just click on that and that will raise your hand for us.

Okay. I remind everyone that we will be having a fourth hearing on March 18th at 5:00 p.m. You can still register or if you know anyone that would like to register, they can still register for that hearing.

The details are on the DEC website. If you go to DEC.ny.gov and click on today's date or yesterday's date, you will see the notices and you should also be able to E-mail at OHMS@DEC.ny.gov. OHMS@DEC.ny.gov. We can send anyone the details of how to register for the March 18th hearing.

I will read one final time the mailing address for written comments. Again, written comments are due by March 22nd. Mailing address Caitlyn Nichols, N-I-C-H-O-L-S, New York State DEC Region 2, 47-40 21st Street, Long Island City, New York 11101, and the E-mail address for the submission of written

comments is DEP.R2@DEC.ny.gov. And again, you have to submit written comments by March 22nd for the comments to be considered by the DEC.

And anyone who has registered by March 5th and has not been able to make their comment in our last three hearing sessions, you can register for the March 18th hearing. Anyone who has registered by March 5th to make a comment on this project and did not yet have an opportunity to make their comment on the record, you can still appear at our March 18 hearing and, again, you can E-mail us at OHMS@DEC.ny.gov or go to the DEC calendar on the home page of DEC.ny.gov and look for the project name on the calendar for today's date or yesterday's date. There should be a link that will take you there.

I thank everyone coming out this evening. The Department thanks you for taking time out of your evening to join us and to make very important comments for the Department to consider in their review of this application.

I thank everyone from DEC Office of Communications who has helped us, and thank you Judge Caruso for your excellent work here this

evening.

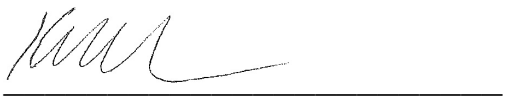
We can stop the recording and save our chat. Thank you very much, everyone.

(At 6:38 p.m., the hearing was adjourned.)

C E R T I F I C A T E

- - -

I hereby certify that the proceedings and evidence are contained fully and accurately in the stenographic notes taken by me on the hearing of the within cause, and that this is a correct transcript of the same.



Karen A. Nickel

Certified Realtime Reporter

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